

ITEM WISE EDITORIAL ... 18th July, 2019



INTERNATIONAL COURT
OF JUSTICE



KULBHUSHAN JADHAV ISSUE... ICJ VERDICT



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EDITORIALS

... DISCUSSION

18th JULY, 2019

83

Kulbhushan Jadhav case file

Alleged of International Court of Justice ruling on death sentence awarded by Pakistan, a look at India's arguments for amendment of the execution and Pakistan's defence of its military court ruling.

Background The case of Kulbhushan Jadhav, an Indian Navy officer, who was allegedly abducted by Pakistan intelligence from Iran and sentenced to death on charges of espionage and terrorism by a military court in Pakistan, has been given a glimmer of hope by the ruling of the International Court of Justice (ICJ). According to a petition by India that sought an amendment of his death sentence because Pakistan had violated numerous international treaties and extracted irregular confessions under coercion, the ICJ, on July 17, 2019, ruled with a decisive vote (10 to 6) that Mr. Jadhav cannot be executed by Pakistan, and that he must be given adequate consular access and a fair trial. The ruling also urged Pakistan to restore his conviction. This constitutes a major diplomatic and legal victory for India, with Pakistan winning India of 'satisfying' it in the Hague.



PROSECUTION'S FACTS, ARGUMENTS & DEMANDS India's case against Pakistan is based on the facts that Mr. Jadhav was abducted by Pakistani intelligence from Iran and sentenced to death on charges of espionage and terrorism by a military court in Pakistan. India's demand is that Pakistan should restore his conviction and provide him with adequate consular access and a fair trial. India's argument is that Pakistan has violated numerous international treaties and extracted irregular confessions under coercion.

Takeaways from the Kulbhushan Jadhav case ruling

India's more successful legal journey to the ICJ must now reshape New Delhi's approach to potentially difficult situations



Kulbhushan Jadhav, the former Indian Navy officer, who was allegedly abducted by Pakistan intelligence from Iran and sentenced to death on charges of espionage and terrorism by a military court in Pakistan, has been given a glimmer of hope by the ruling of the International Court of Justice (ICJ). According to a petition by India that sought an amendment of his death sentence because Pakistan had violated numerous international treaties and extracted irregular confessions under coercion, the ICJ, on July 17, 2019, ruled with a decisive vote (10 to 6) that Mr. Jadhav cannot be executed by Pakistan, and that he must be given adequate consular access and a fair trial. The ruling also urged Pakistan to restore his conviction. This constitutes a major diplomatic and legal victory for India, with Pakistan winning India of 'satisfying' it in the Hague.

India's strategy in this case has been to exploit increasing international sympathy that Pakistan was an emerging 'rogue' state. Lacking access to Pakistan's court system for Article 36 of the Vienna Convention on Consular Relations – it deals with the arrest, detention and trial of a foreign citizen – India's counsel, Harish Salve, highlighted the compelling arguments. First was the arrest process, which was not accompanied by an immediate notification to Indian consular officials in Islamabad. There was a delay of over three weeks before India was informed, and it was during this period, according to reliable sources from within Pakistan, that Mr. Jadhav was subjected to all manner of coercion and threat to sign a false confession under custody without adequate legal representation. Indeed, the two-way denial of access and communication by any means between Mr. Jadhav and consular officials and a failure to allow him to see the ICJ, led to the two-way denial of access and communication by any means between Mr. Jadhav and consular officials and a failure to allow him to see the ICJ.



Violation of rights The International Convention on Civil and Political Rights (ICCPR) recognises the right to an effective defence against criminal charges, and to a fair and impartial trial, in which the accused is represented by a lawyer of his choice. By denying consular access, Pakistan has violated its obligations under the Vienna Convention and the ICCPR. India has also accused Pakistan of violating the right to a fair trial and impartiality, as well as the right to adequate legal representation. India has also accused Pakistan of violating the right to a fair trial and impartiality, as well as the right to adequate legal representation.

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18th July, 2019

UPSC CSE – GS II

GS II ... International Relations

Important International institutions, agencies and fora- their structure, mandate.

DRAFT QUESTION

Examine the role of ICJ in solving disputes among the States as per International Law.

The Indian EXPRESS
JOURNALISM OF COURAGE
17th July, 2019

83 Kulbhushan Jadhav verdict today — a look at India's arguments and Pakistan's defence

Kulbhushan Jadhav verdict: Ahead of ICJ ruling on death sentence awarded by Pakistan, a look at India's arguments for annulment of the execution and Pakistan's defence of its military court ruling.

At 6.30 pm IST on Wednesday, the International Court of Justice (ICJ), the principal judicial organ of the United Nations, will deliver its verdict in the Kulbhushan Jadhav case between India and Pakistan. Judge Abdulqawi Ahmed Yusuf, President of the court, will read out the decision at the Peace Palace in The Hague.

Advertising

Jadhav, 49, a retired Navy officer, was arrested allegedly on March 3, 2016, and India was informed on March 25. He was sentenced to death on charges of espionage and terrorism in April 2017.

Kulbhushan Jadhav case: When did it reach ICJ?

India first approached the ICJ on May 8, 2017, over Pakistan's "egregious violation" of provisions of the Vienna Convention on Consular Relations, 1963, by repeatedly denying it consular access to Jadhav. India argued that it had not been informed of Jadhav's detention until long after his arrest and that Pakistan had failed to inform him of his rights. India also alleged that it had learned about the death sentence against Jadhav from a press release.

Referring to "the extreme gravity and immediacy of the threat that authorities in Pakistan would execute an Indian citizen", India asked for the execution to be put on hold.

83 **Kulbhushan Jadhav verdict today — a look at India's arguments and Pakistan's defence**

On May 9, 2017, the ICJ asked the two countries to present their arguments and until such time, asked Pakistan not to do anything. On May 15, the two sides presented their arguments; on May 18, the 10-member-bench of the ICJ restrained Pakistan from executing Jadhav until a final verdict is given.

On June 13, the court fixed September 13 for filing of memorial (petition) by India and December 13, 2017 as the time-limit for a counter-memorial by Pakistan. These were filed within the time-limits. The court fixed April 17 and July 17, 2018 as the respective time-limits for written replies by India and Pakistan. These too were filed within the deadlines.

Kulbhushan Jadhav verdict today: Has there been contact with Jadhav?

In December 2017, Pakistan allowed Jadhav's mother Avanti and wife Chetna to meet him on what it called "humanitarian grounds". India, however, said the Pakistan government created an "intimidating" atmosphere where Jadhav's mother and wife were "harassed" and "hectored".

India said they were asked to change their attire as well as remove their mangalsutra, bindis and bangles, and repeatedly interrupted from speaking in Marathi and Hindi. Contrary to the understanding, Indian Deputy High Commissioner J P Singh was initially separated from the meeting; it was only after his insistence that he was allowed to observe the proceedings from behind a glass partition and he could hardly hear anything.

83 Kulbhushan Jadhav verdict today — a look at India's arguments and Pakistan's defence

The family members said Jadhav was not his usual self and gave “tutored answers”. According to the External Affairs Ministry, he gave scripted answers “designed to perpetuate the false narrative of his alleged activities in Pakistan”.

What happened after the written submissions in the ICJ?

The court fixed oral arguments from February 18 to 21, 2019. As it turned out, the hearings took place in the backdrop of the Pulwama terrorist attack on February 14, 2019.

While India argued on February 18 and 20, Pakistan responded on February 19 and 21. India was represented by former Solicitor General Harish Salve and External Affairs Ministry Joint Secretary (Pakistan-Afghanistan-Iran) Deepak Mittal, and Pakistan by Attorney General Anwar Mansoor Khan while Khawar Qureshi was legal counsel.

Since there was a former Supreme Court of India judge, Justice Dalveer Bhandari, on the 10-member ICJ Bench, Pakistan was allowed an ad hoc judge on the Bench — Tassaduq Hussain Jilani, a former Chief Justice of Pakistan.

Kulbhushan Jadhav case: What arguments has India made?

India has said the sentence is based on an “extracted confession”. Citing international bodies like the European Parliament and the International Committee of Jurists, Salve questioned military courts in Pakistan, saying they do not follow due process. He argued that the Vienna Convention, which guarantees consular access, cannot be selectively given and the ICJ should make it a “human right”. He said Article 36 of the Vienna Convention doesn't exclude espionage.

83 Kulbhushan Jadhav verdict today — a look at India's arguments and Pakistan's defence

Broadly, India has argued:

- * The sentence violates international law and provisions of the Vienna Convention;
- * India is entitled to *restitutio in integrum* (restoration to original condition);
- * The ICJ should annul the military court decision and restrain Pakistan from giving effect to the sentence or conviction; and
- * Pakistan should be directed to release Jadhav immediately and facilitate his safe passage to India.

If the ICJ were to find that Jadhav is not to be released, then India has requested:

- * Annul the military court decision and restrain Pakistan from giving effect to the sentence; or
- * Direct it to take steps to annul the military court decision; or
- * Direct a trial under ordinary law in civilian courts, after excluding his confession and in strict conformity with provisions of the International Covenant on Civil and Political Rights, with full consular access and a right to India to arrange for his legal representation.

Kulbhushan Jadhav case: And what has Pakistan argued?

Pakistan has asked the ICJ to “dismiss or declare inadmissible” India’s claim. It rejected India’s argument that the military courts don’t have officers with judicial expertise and experience, and said Pakistan’s courts are “extremely independent”.

83 Kulbhushan Jadhav verdict today — a look at India's arguments and Pakistan's defence

Pakistan's Attorney General said, "India seeks relief which they cannot claim from this court." He assured the ICJ that the process of judicial review in Pakistan was robust and Jadhav can avail it if he chooses.

"The military courts have sufficient proof of espionage and the said military court on the available evidence and the judicial confession proceeded to convict him despite he being given the option of going for a judicial review, he has refused to do so," the AG told the court.

On India's claims of consular access, he said: "Surely (it) was not allowed for good reason in terms of the agreement of 2008, specially for the reason that commander Jadhav being involved in espionage."

How binding are ICJ judgments?

According to ICJ, judgments delivered by the court (or by one of its chambers) in disputes between states are binding upon the parties concerned. Article 94 of the United Nations Charter provides that "each Member of the United Nations undertakes to comply with the decision of [the court] in any case to which it is a party". Judgments are final and without appeal.

If there is a dispute about the meaning or scope of a judgment, the only possibility is for one of the parties to make a request to the court for an interpretation. In the event of the discovery of a fact hitherto unknown to the court which might be a decisive factor, either party may apply for revision of the judgment.

However, there have been instances when the ICJ's rulings have not been followed. The most famous one was in 1986, when the ICJ ruled in a petition by Nicaragua, which alleged that the US had waged a covert war against it by supporting a rebellion.

83 Kulbhushan Jadhav verdict today — a look at India's arguments and Pakistan's defence

The ICJ ordered reparations from the US in favour of Nicaragua. The US, in response, cancelled its declaration of the ICJ's jurisdiction. It then went to the UN Security Council against the ICJ order and succeeded.

So, whatever the ICJ decides, both governments will have to be prepared for a long haul.

Kulbhushan Jadhav verdict today: A timeline of the case at The Hague
2016-17

India told ICJ that Kulbhushan Jadhav was “kidnapped from Iran, where he was carrying on business after retiring from the Indian Navy, and was then shown to have been arrested in Baluchistan” on March 3, 2016. Pak informed India only on March 25, 2016. India sought consular access that same day, and repeatedly afterward. On January 23, 2017, Pak requested assistance in an investigation concerning Jadhav. On March 21, 2017, it issued a note verbale saying consular access would be considered in the light of India's response to its request for assistance in the probe.

May 8, 2017

India began proceedings against Pak “for egregious violations of the Vienna Convention on Consular Relations, 1963” in detaining Jadhav, and in his sentencing to death by a military court. India asked that the death sentence be declared violative of international law and suspended, and that Pak be restrained from giving effect to it and directed to annul the decision — failing which ICJ should declare the conviction and sentencing illegal, and direct Pak to release Jadhav immediately. India also asked for a direction to Pak to not execute Jadhav until the ICJ disposes of the case. Pak must keep the Court informed of its actions, and does nothing to prejudice his or India's rights with respect to any decision the court might make.

83 **Kulbhushan Jadhav verdict today — a look at India's arguments and Pakistan's defence**

May 9, 2017

President of the Court asked Pak, pending the Court's decision, "to act in such a way as will enable any order the Court may make... to have its appropriate effects".

May 15, 2017

In public hearings, India confirmed the measures it had sought; Pak asked the Court to reject request.

May 18, 2017

Court directed Pak to not execute Jadhav till it takes a final view, and to keep it informed; decided that until the decision, "it shall remain seized of the matters which form the subject matter of this Order".

June 13, 2017

September 13 and December 13 were fixed as the deadlines for India's Memorial and Pak's Counter Memorial respectively.

January 17, 2018

April 17 and July 17 fixed as deadlines for India's Reply and Pak's Rejoinder respectively.

February 18-21, 2019

India and Pak made two rounds of oral arguments at The Hague.

July 4, 2019

ICJ announced that the President of the Court, Judge Abdulqawi Ahmed Yusuf, will read the Court's decision at 3pm on July 17.

83 Takeaways from the Kulbhushan Jadhav case ruling

India's more successful legal journey to the ICJ must now reshape New Delhi's approach to potentially difficult situations. Kulbhushan Jadhav, the former Indian Navy officer, who was allegedly abducted by Pakistani intelligence from Iran and sentenced to death on charges of espionage and terrorism by a farcical military court in Pakistan, has been given a glimmer of hope by the ruling of the International Court of Justice (ICJ). Responding to a petition by India that sought an annulment of his death sentence because Pakistan had violated numerous international treaties and extracted irregular confessions under coercion, the ICJ, on July 17, 2019, ruled with a decisive vote (15-1) that Mr. Jadhav cannot be executed by Pakistan, and that he must be given adequate consular access and a fair trial. The ruling also urged Pakistan to review his conviction. This constitutes a major diplomatic and legal victory for India, with Pakistan accusing India of 'ambushing' it at The Hague.

Focussed strategy

Given its rather lukewarm record in the past of securing the release of Indian detainees in Pakistan through bilateral negotiations, India's strategy in this case has been to exploit increasing international acceptance that Pakistan was an emerging 'rogue' state. Laying stress on Pakistan's scant regard for Article 36 of the Vienna Convention on Consular Relations — it deals with the arrest, detention and trial of a foreign citizen — India's counsel, Harish Salve, highlighted two compelling arguments. First was the arrest process, which was not accompanied by an immediate notification to Indian consular officials in Islamabad. There was a delay of over three weeks before India was informed, and it was during this period, according to reliable sources from within Pakistan, that Mr. Jadhav was subjected to all means of coercion and forced to sign a 'confession taken under custody' without adequate legal representation. Second was the two-way denial of access and communication by any means between Mr. Jadhav and consular officials and a failure to inform him of the rights he enjoyed under the convention.

83 Takeaways from the Kulbhushan Jadhav case ruling

The legitimacy of military courts has always been controversial within the international legal system that emerged in the post-World War II era as a fast-track system of delivering skewed justice by authoritarian regimes and military dictatorships. Purportedly set up in Pakistan in 2015 as a counter-terrorist and anti-corruption initiative, Mr. Jadhav's sentencing in April 2017 was based on confessions taken in captivity and is part of several arbitrary sentencings by Pakistan's Military Court.

Violation of rights

The International Covenant on Civil and Political Rights (ICCPR) recognises the right to an effective defence against criminal charges, and to a fair and impartial trial, in which the accused is represented by a lawyer of his choice. By denying consular access, Pakistan has stood in gross violation of both the Vienna Convention and the ICCPR. Had due process been followed, and then had Mr. Jadhav been charged with espionage, India may not have had the necessary room to take the matter to the ICJ.

By attempting to circumvent the 'due diligence' process, Pakistan has exposed serious chinks in its legal environment and jeopardised its standing in the comity of nations. The Jadhav case has also revealed Pakistan's desperation in its search for 'proxies' as drivers of the internal unrest in Balochistan. Reliable sources within India's intelligence agencies hint at the possibility of Mr. Jadhav having been abducted by armed groups operating on the border between Iran and Balochistan. Pakistan is known to have used proxy Sunni groups such as the Jaish al-Adl against Iran, and Iranian officials have often spoken to their Indian counterparts about Pakistan's sponsorship of terrorist activities along the Iran-Pakistan border. A testimony to the growing menace of this group is its recent designation as a front of Jundullah — which is a 'Specially Designated Global Terrorist'.

83 Takeaways from the Kulbhushan Jadhav case ruling

India has shown both intent and resilience in attempting to secure the release of Mr. Jadhav despite the many hiccups along the way. Following a synergised approach steered by the National Security Adviser and the External Affairs Minister, India fought the kidnapping of Mr. Jadhav, an Indian national who was legitimately residing in Iran after retirement from the Indian Navy. Realising, in 2017, following his death sentence that the overall deteriorating relations between India and Pakistan had closed the door on any bilateral way of securing his release, India rightly chose to go the 'international way' by fielding a formidable legal team led by the jurist, Harish Salve. Sparing no efforts on the human aspects of the case too, India managed to get Mr. Jadhav to meet his mother and wife after the death sentence was pronounced. The first success achieved by the Indian legal team was on May 9, 2017 when the ICJ sent an urgent message to the Prime Minister of Pakistan, urging him to stay the execution till India's case was heard fully and the ICJ arrived at a verdict. Moving slowly but surely through the legal battle for over two years, India, has been demonstrating significant synergy between various stakeholders in the case.

The final verdict will, hopefully, galvanise the Indian establishment to step on the pedal and exert pressure on Pakistan to rescind the death sentence and allow Mr. Jadhav consular access and legitimate legal platform to mount his defence. While it would be wishful thinking to assume that Mr. Jadhav would return to India soon, there is a glimmer of hope on the horizon that the Indian strategic establishment would do well to exploit. Having deftly navigated the legal and diplomatic channels and restrained the Pakistan military by securing manoeuvring space following the ICJ verdict, a leading power such as India must demonstrate its intent and capacity to extract desirable outcomes out of potentially difficult, or seemingly impossible situations. Kulbhushan Jadhav's case is one such challenge.

INTERNATIONAL COURT OF JUSTICE



INTERNATIONAL COURT
OF JUSTICE

- *It is the primary judicial branch of the United Nations.*
- *Headquarters: Peace Palace in The Hague, Netherlands.*

1. It decides, in accordance with international law, disputes of a legal nature that are submitted to it by States (jurisdiction in contentious cases).
 - Article 94 establishes the duty of all UN members to comply with decisions of the Court involving them.
 - If parties do not comply, the issue may be taken before the Security Council for enforcement action.
2. It also gives advisory opinions on legal questions at the request of the organs of the United Nations, specialized agencies or one related organization authorized to make such a request (advisory jurisdiction).

RECENT ISSUE OF ADVISORY OPINION



INTERNATIONAL COURT
OF JUSTICE

- Britain's continued administration of Chagos Archipelago is unlawful. ICJ has given advisory opinion.
- Since late 1960s, U.S. maintained military base in one of them i.e., Diego Garcia.
- In 2016, Britain extended the lease to the U.S. till 2036, it also said it would return the islands to Mauritius, when no longer needed for defence purposes.
- The agreement to allow Britain to administer Chagos Islands came in 1965, three years before Mauritius gained independence.
- Mauritius says, Britain has made it a pre-condition for independence. This is endorsed by ICJ.
- The agreement did not amount to freely expressed and genuine will.

CHAGOS ISLANDS

Assumption island

Diego Garcia

Agalega island

Indian Ocean

AUSTRALIA

WHAT DO YOU UNDERSTAND BY ADVISORY OPINION?



- 1 Advisory proceedings begin with the filing of a written request for an advisory opinion.
- 2 The Court's advisory opinions are not binding. However, they carry great legal weight and moral authority.
- 3 Sometimes advisory opinions contribute to the clarification and development of International law and it strengthens peaceful relations between the States.

WHAT DO YOU UNDERSTAND BY CONSULAR ACCESS?



- The ability of citizens of a country to have access, physical or via communication, with the consular officials of their own country, while in a foreign country.
- The State which detains a national of other country must allow consular officers of the country to access the detainee.



ISSUE OF KULBHUSHAN JADHAV



- On March 3, 2016, he was kidnapped from Iran, where he was doing business after retiring from Indian Navy.
- India was informed after 22 days.

WHAT PAKISTAN SAYS?

Arrested in the Pakistani Province of Balochistan on charges of terrorism and spying for India.

SPYING

To secretly collect and report information about the activities of another country.

HOW THE ISSUE WENT TO ICJ?

MARCH 3, 2016

He was arrested

MARCH 25, 2016

India was informed

APRIL, 2017

He was sentenced to death on charges of espionage and terrorism by the Military Court.

MAY 8, 2017

India approached ICJ for the violation of Vienna Convention on Consular Relations, 1963.

MAY 18, 2017

Ten member bench of ICJ restrained Pakistan from executing Jadhav until a final verdict is given.

MAY 9, 2017

ICJ asked the two countries to present their arguments.

JULY 17, 2019

ICJ ruled Pakistan should review and reconsider his conviction and death sentence.



KULBHUSHAN JADHAV
Retired Navy Officer





AN INSIGHT INTO ICJ JUDGMENT

1

JUDGMENT ON CONSULAR ACCESS



“Pakistan should give the Indian Government consular access to Mr. Jadhav. Denial of consular access constituted breach of Article 36 of Vienna Convention of 1963, as Pakistan is also signatory. Vienna Convention on Consular Access is applicable even for spies. Bilateral agreements must be read as supplementing, not replacing multilateral treaties.”.

INDIAN ARGUMENT

Vienna Convention stipulates that all foreign nationals arrested must be given access to their Government or local embassy

PAKISTAN ARGUMENT

A 2008 bilateral agreement between India and Pakistan on consular access modifies the 1963 Vienna Convention to exclude consular access in cases of political or security grounds.



AN INSIGHT INTO ICJ JUDGMENT

**2**

JUDGMENT ON LEGAL REPRESENTATION

“Legal representation is to be allowed, if required by enacting appropriate legislation”.

INDIAN ARGUMENT

Trial in the military court does not satisfy the minimum standards of due process in its application to civilians and an appeal against the military court decision would be insufficient.

PAKISTAN ARGUMENT

Pakistan's courts are “Extremely Independent”. Military courts have officers with judicial expertise and experience. The option of going for a judicial review is given, but, he has refused to do so.



AN INSIGHT INTO ICJ JUDGMENT



3

JUDGMENT ON ACQUITTAL, RELEASE

“Continuous stay of the execution until Pakistan effectively reviews and reconsiders the case.”

INDIAN ARGUMENT

India requested for the acquittal, release and return of Jadhav. If not, India asked for a trial under ordinary law in civilian courts with strict conformity with provisions of International Covenant on Civil and Political Rights.

PAKISTAN ARGUMENT

Pakistan says it followed due procedure in granting death penalty.

ARE THE ICJ JUDGMENTS BINDING?



- 1 The Judgment delivered by the Court in disputes between States are binding.
- 2 Article 94 of UN Charter provides that each member of UN undertakes to comply with the decision of Court in any case to which it is a party.
- 3 Judgments are final and without an appeal
- 4 Only if there is a dispute with regard to interpretation, the parties can make a request for clarification.

NICARAGUA ISSUE ... A BAD PRECEDENT!



- 1** In 1986, ICJ ruled in a petition by Nicaragua that alleged that US had waged a covert war against it by supporting a rebellion.
- 2** ICJ ordered reparations (payment for harm or damage) from US in favor of Nicaragua, but the US in response, cancelled its declaration of the ICJ's jurisdiction
- 3** It then went on to United Nations Security Council against ICJ order and succeeded.

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For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

For Information:

info.learningspacedigital@gmail.com

Visit us at:

www.learningspacedigital.com

0866 244 44 72

98499 42299

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